# Terms & Conditions

**1. APPLICABILITY**
Notwithstanding the heading "Bill of Lading" the provisions set out and referred to in this document shall also apply if the transport as described on the back of this Bill of Lading ("B/L") is performed by one mode of transport only.

**2. DEFINITIONS**
"Carrier" means the party on whose behalf this B/L has been signed
"Goods" means the cargo accepted from the Shipper and includes any Container not supplied by or on behalf of the Carrier.
"Container" includes any container, trailer, transportable tank, flat or pallet.
"Merchant" includes the shipper, Holder, consignee, the receiver of the Goods, any person owning or entitled to the possession of the Goods or this B/L and anyone acting on behalf of any such persons.
"Holder" means any person for the time being in possession of this B/L to whom the property in the Goods has passed on or by reason of the consignment of the Goods or the endorsement of this B/L or otherwise.
References to the Internal Law of a state shall be deemed to exclude all principles of private International law applied by such state.

**3. CARRIER'S TARIFF**
The terms of the Carrier's applicable Tariff are incorporated herein. Copies of the relevant provisions of the applicable Tariff are obtainable from the Carrier upon request. In the case of inconsistency between this B/L and the applicable Tariff, this B/L shall prevail.

**4. WARRANTY**
The Merchant warrants that in agreeing to the terms hereof he is, or has the authority of the person owning or entitled to the possession of the goods and this B/L.
The shipper warrants that the particulars relating to the goods as set out overleaf have been checked by him and that such particulars and any other particulars furnished by him or on his behalf are correct. The shipper shall indemnify the Carrier against all loss, damage and expenses arising or resulting from inaccuracies in or inadequacy of such particulars.

**5. SUB-CONTRACTING**
(1) The Carrier shall be entitled to sub-contract on any terms the whole or any part of the carriage, loading, unloading, storing, warehousing, handling and any and all duties whatsoever undertaken by the Carrier in relation to the Goods.
(2) The Merchant undertakes that no claim or allegation shall be made against any servant, agent of sub-contractor of the Carrier which imposes or attempts to impose upon any of them or any vessel owned by any of them any liability whatsoever in connection with the Goods, and if any such claim or allegation should nevertheless be made to indemnify the Carrier against all consequences thereof without prejudice to the foregoing, every such servant, agent and sub-contractor shall have the benefit of all provisions herein benefiting the Carrier, as if such provisions were expressly for their benefit and in
(3) entering into this contract. the Carrier, to the extent of those provisions, does so not only on its own
(4) behalf, but also as agent and trustee for such servants, agents and sub-contractors.
(5) The expression "sub-contractor" in this clause shall include direct and indirect sub-contractors and their respective servants and agents.

**6. CARRIER'S RESPONSIBILITY**
(1) The Carrier shall be liable for loss of or damage to the Goods occurring between the time when carrier receives the Goods for transportation and the time of delivery. The Goods are deemed (i) to have been received properly by the Carrier upon the issuance of this B/L and (ii) to have been delivered upon complete discharge of the Goods from any corresponding mode of transport carrying it.
(2)The Carrier shall, however, be relieved of liability for any loss or damage if such loss or damage resulted from:

(a) the wrongful act or neglect of the Merchant;
(b) compliance with the instructions of the person entitled to give them;
(c) the lack of or insufficiency of or defective condition of packing in the case of Goods which, by their nature, are liable to wastage or to be damaged when not packed or when not properly packed;
(d) handling, loading, stowage or unloading of the Goods by or on behalf of the Merchant;
(e) inherent vice of the Goods;
(f) insufficiency or inadequacy of marks or numbers on the Goods, coverings or Containers;
(g) strike or lockouts or stoppage or restraints on labor from whatever cause whether partial or general;
(h) failure of the Merchant to notify the correct nature of the Goods; and
(i) any cause or event which the Carrier could not avoid and the consequence whereof he could not prevent by the exercise of reasonable diligence.

(3)Where under sub-clause (2) the Carrier is not under any liability in respect of some of the factors causing the loss or damage, Carrier he shall only be liable to the extent that those factors for which he is liable under this clause have contributed to the loss or damage
(4)The burden of proving that the loss or damage was due to one or more of the causes, or events, specified in (a), (b) and (i) of sub-clause (2) shall rest upon the Carrier.
When the Carrier establishes that in the circumstances of the case, the loss or damage could be attributed to one or more of the causes, or events, specified in (c) to (g) of sub-clause (2), it shall be presumed that it was so caused. The Merchant shall, however, be entitled to prove that the loss or damage was not in fact caused, either wholly or partly, by one r more of the loss or damage, causes, or events.

**7. AMOUNT IN COMPENSATION**
(1) When the Carrier is liable for compensation in respect of loss of or damage to the Goods, such compensation shall be calculated by reference to the invoice value of the Goods plus freight charges and insurance if paid;

(2) If there is no invoice value of the Goods, such compensation shall be calculated by reference to the value of such Goods at the place and time they are delivered to the Merchant in accordance with the contract or should have been so delivered. The value of the Goods shall be fixed according to the commodity exchange price or, if there be no such price, according to the current market price, or if there be no commodity exchange price or current market price, by reference to the normal value of goods of the same kind and quality;

(3) Compensation shall not however exceed US$2 per kilo of gross weight of the Goods lost or damaged;

(4) Higher compensation may be claimed only with the consent of the Carrier. Any value of the Goods declared by the shipper that exceeds the limits stated in this B/L shall be substituted for that limit. Any partial loss or damage shall be adjusted pro rata on the basis of such declared value.

**8. SPECIAL PROVISIONS**
Notwithstanding anything provided for in Causes 6 and 7 of this B/L and subject to Clause 19
(1) If it can be proved where the loss or damage occurred, the Carrier and the Merchant shall, as to the liability of the Carrier, be entitled to require such liability to be determined

(a) by the provisions contained in any International convention or Internal law of a state, which:

(i) cannot be departed from by private contract to the detriment of the Merchant, and
(ii) would have applied if the Merchant had made a separate and direct contract with the Carrier in respect of the particular stage of transport where the loss or damage accrued, and received as evidence thereof, any particular document which must be issued if such international convention or internal law of a state shall apply.

Provided that an international convention or internal law of a state may be invoked as aforesaid only if it would have been applicable if the contract referred to in (ii) above are governed.
(i) Where the loss or damage occurred between the time that the Goods were received by the Carrier for transportation and the time that the Goods were loaded at the port of loading, by the internal law of a state of the place or receipt, or
(ii) where the loss or damage occurred during carriage by sea, by the Internal Law of a state of the final discharge port, or
(iii) where the loss or damage occurred between the time that the Goods were discharged at the final port of discharge and the time that the Goods were delivered to the Merchant, by the internal Law of a state of the place of delivery, or

(b) subject to (a)
(i) by the Hague Rules contained in the International Convention for the Unification of Certain Rules Relating to Bills of Lading dated 25th August 1924. if the loss or damage is proved to have occurred at sea or on inland waterways, for the purposes of this sub-clause the limitation of liability under the Hague Rules Shall be deemed to be 100 sterling, lawful money of the United Kingdom per package or unit and references in the Hague Rules to carriage by sea shall be deemed to include references to carriage by inland waterways and the Hague Rules shall be construed accordingly; or
(ii) by Standard Japanese Road Transportation Clauses if the loss or damage is proved to have occurred during carriage by road in Japan; or
(iii) by Japanese Railway Transportation Business Law and Ministerial Ordinance for Railway Transportation if the loss or damage is proved to have occurred during carriage by rail in Japan.

(2) if the whole of the carriage undertaken by the Carrier is (i) limited to carriage from a Container Yard (CY) or Container Freight Station (CFS) / in or (ii) immediately adjacent to the sea terminal at the port of loading to a CY or CFS in or (iii) Immediately adjacent to the sea terminal at the port of discharge, the liability of the Carrier shall be determined by the internal law of a state, which shall be applicable to the carriage by sea under paragraph (a) above, or failing which by the Hague Rules, referred to in (1) (b) (i) above, irrespective of whether the loss or damage is proved to have occurred during the period of carriage at sea or port or subsequent thereto.

**9. GENERAL**
(1) The Carrier does not undertake that the Goods shall arrive at the port of discharge or place of delivery at any particular time or to meet any particular market or use and save as provided in Clause 6 the Carrier shall in no circumstances be liable for any direct, indirect or consequential loss or damage caused by delay;

(2) Save as otherwise provided herein, the Carrier shall in no circumstances be liable for direct or indirect or consequential loss or damage arising from any other cause;

(3) The terms of this B/L shall govern the responsibility of the Carrier in connection with or arising out of the supply of a Container to the Merchant whether before or after the Goods are received by the Carrier for transportation or delivered to the Merchant.

**10. NOTICE OF LOSS, TIME BAR**
(1) Unless notice of loss or damage to the Goods and the general nature it be given in writing to the Carrier at the place of delivery before or at the time of the removal of the Goods into the custody of the person entitled delivery thereof under the B/L, or if the loss or damage be not apparent, within seven consecutive days thereafter, such removal shall be prima facie evidence of the delivery by the Carrier of the Goods as described in this B/L;

(2) Subject to paragraph (3) below, the Carrier shall be discharged of all liability, including cargo damage, under this B/L unless legal proceedings are brought and written notice thereof given to the Carrier within 1 year after delivery of the Goods. In the event of cargo damage, the Merchant must notify the Carrier in writing within 3 (three) calendar days that such damage becomes apparent. For Goods carried in a container, such notification must be sent within 3 (three) calendar days of the opening of the container;

(3) Notwithstanding paragraph (2) above, if the whole of carriage undertaken by the Carrier is limited to the carriage from a CY or CFS in or immediately adjacent to the sea terminal at the port of loading to a CY or CFS in or immediately adjacent to the sea terminal at the port of discharge the Carrier shall be discharged from all liability whatsoever in respect of the Goods, unless suit is brought within one year of their delivery or of the date when they should have been delivered.

**11. DEFENSES AND LIMITATIONS FOR THE CARRIER**
(1) The defenses and limits of liability provided for in this B/L shall apply in any action against the Carrier for loss or damage to the Goods whether the action be founded in contract or in tort;

(2) The Carrier shall not be entitled to the benefit of the limitation of liability provided for in Clause 7 sub-clause;

(3) if it is proved that the loss or damaged resulted from an act or omission of the Carrier done with intent to cause damage or recklessly and with knowledge that damage would probably result.

**12. SHIPPERPACKED CONTAINERS**

(1) If a container has not been filled, packed, stuffed or loaded by the Carrier, the latter shall not be liable for loss of or damage to the contents and the Mer-chant shall indemnity the Carrier against any injury, loss, damage, liability or expense incurred by the Carrier if such injury, loss, damage, liability or expense has been caused by;

(a) the manner in which the Container has been filled, packed, stuffed or loaded; or
(b) the unsuitability of the contents for carriage in Containers, or
(c) the unsuitability or detective condition of the Container which would have been apparent upon reasonable inspection by the Merchant at or prior to the time the Container was filled, packed, stuffed or loaded.

(2) If a Container which has not been filled, packed, stuffed or loaded by the Carrier is delivered by the Carrier with seals intact, such delivery shall be deemed as full and complete performance of the Carrier's obligation here- under and the Carrier shall not be liable for any loss or of damage to the contents of the container;

(3) The Shipper shall inspect Containers before filling them and the use of the Containers shall be *prima facie* evidence of their being sound and suit-able for use.

**13. INSPECTION OF GOODS**

The Carrier shall be entitled, but under no obligation to open any Package or container at any time and to inspect at the contents. If it thereupon appears that the contents or any part thereof cannot safely or properly be carried or carried further, either at all without incurring any additional expense or taking any measures in relation to such Package container or its contents or any part thereof, the Carrier may abandon the transportation thereof and/or take any measures and/or incur any reasonable additional expense to carry or to continue the carriage or to store the same as here or afloat under cover or in the open, at any place, which storage shall be deemed to constitute due delivery under this B/L. The Merchant shall indemnity the Carrier against any reasonable additional expense so incurred.

**14. DESCRIPTION OF GOODS**
(1) This B/L shall be prima facie evidence of the receipt by the Carrier in apparent good order and condition except as otherwise noted of the total number of Containers or other packages or units enumerated overleaf. Proof to the contrary shall not be admissible when this B/L has been transferred to a third party acting in good faith;
(2) No representation is made by the Carrier as to the weight, contents, measure, quantity, quality, description, condition, marks, numbers or value of the Goods and the Carrier shall be under no responsibility whatsoever in respect of such description or particulars;
(3) Unless otherwise stated, the herein described container (s) is / are supplied by the vessel and the signing of this B/L is not a surrender of the ownership of the container.

**15. SHIPPER'S RESPONSIBILITY**
(1) The Shipper Warrants to the Carrier that the particulars relating to the Goods as set out overleaf have been checked by the Shipper on receipt of this B/L and that such particulars and any other particulars furnished by or on behalf of the Shipper are correct;
(2) The Shipper Shall indemnify the Carrier against all loss, damage and expenses arising or resulting from inaccuracies in or inadequacy of such particulars. the right of the Carrier to such indemnity shall in way limit his responsibility and liability under this B/L to any person other that the Shipper.

**16. FREIGHT AND CHARGES**
(1) Freight and charges shall be deemed fully earned on receipt of the Goods by the Carrier and shall be paid and non-returnable in any event;

(2) The Merchant's attention is drawn to stipulations concerning currency in which the freight charges are to be paid, rate of exchange devaluation and other contingencies relative to freight and charges in the applicable Tariff;

(3) The freight has been calculated on the basis of particulars furnished by or on behalf of the Shipper. The Carrier may at any time open any Container or other package or unit in order to reweigh, remeasure or revalue the contents and if the particulars furnished by or on behalf of the Shipper are incorrect, it is agreed that a sum equal to either five times the difference between the correct freight and the freight charged or to double the correct freight less the freight charged whichever sum the smaller, shall be payable as liquidated damages to the Carrier;

(4) Full freight hereunder shall be due and payable at the place where this B/L is issued, by the Shipper in cash without deduction on receipt of the Goods or part thereof by the Carrier for shipment even if stated in this B/L to be payable elsewhere and shall be deemed to have been fully earned upon such receipt of such Goods. All charges due hereunder together with freight (if not paid at the port of loading as aforesaid) Shall be due from and payable on demand by the Shipper. Consignee. Owner of the Goods or Holder of this B/L (who Shall be jointly and severally liable to the Carrier therefore) at such port or place as the Carrier may require, vessel or cargo lost or not lost from any cause whatsoever the Shipper are.

**17. LIEN**
The Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable to the Carrier under this contract and for general average contributions to whomsoever due and for the cost of recovering the same and for that purpose shall have the right to sell the Goods by Public Auction or private treaty without notice to the Merchant for as long as the internal law of a state applicable in the discharge port permits. If on sale of the Goods the proceeds fail to cover the amount due and the cost incurred, the Carrier shall be entitled to recover the deficit from the Merchant.
**18. OPTIONAL STOWAGE**

The Goods may be stowed by the Carrier in Containers or similar articles of transport used to consolidate Goods;
Goods stowed in Containers other than open flats or pallets whether by the Carrier or the Merchant, may be carried on or under deck without notice to the Merchant under deck shall participate in general average and shall be deemed to be with in the definition of goods for the purposes of the Hague Rules Such Goods (other than livestock) whether Carried on deck or under deck shall participate in general average and shall be deemed to be with in the definition of goods for the purpose of Hague Rules.

**19. DECK CARGO AND LIVESTOCK**

Goods (not being Goods stowed in Containers of other open flats or pallets) which are stated herein to be carried on deck and livest ock. whether or not carried on deck, are carried without responsibility on the part of the Carrier for loss or damage of whatsoever nature arising during carriage by sea whether caused by unseaworthiness or negligence or any other cause whatsoever. The Carrier must obtain express approval from the Merchant concerned prior to carrying such Goods on deck

**20. METHODS AND ROUTES OF TRANSPORTATION**

(1) The Carrier may at any time and without notice to the Merchant:

(a) use any means or transport or storage whatsoever;
(b) transfer the Goods from one conveyance to another including trans-shipping or carrying the same on another vessel than the vessel named overleaf;
(c) proceed by any route in his discretion (whether or not the nearest or most directly customary or advertised route) and proceed to or stay at any place or port whatsoever once or more often and in any order;
(d) load and unload the Goods at any place or port (whether or not any such port is named overleaf as the Port of Loading or Port of discharge) and store the Goods any such place or port;
(e) comply with any orders or recommendations given by any government or authority or any person or body acting or purporting to act as or on behalf of such government or authority or having under the terms of the insurance on the conveyance employed by the Carrier the right to give orders or directions.

(2) The liberties set out in sub-clause (1) may be invoked by the Carrier for any purpose whatsoever including undergoing repairs towing or being towed, adjusting instruments, drydocking and assisting vessels in all situations, and anything done in accordance with sub-clause (1) or any delay arising therefrom shall be deemed to be within the contractual carriage and shall not be a deviation.

**21. MATTERS AFFECTING PERFORMANCE**

(1) If at any time the performance of the contract evidenced by this B/L is or is likely to be affected by any hindrance risk delay, difficulty or disadvantage of whatsoever and which cannot be avoided by the exercise of reasonable endeavors, the Carrier (whether or not the transport has commenced) may without notice to the Merchant treat the performance of this contract as terminated and place the Goods or any part of them at the Merchant's disposal at any port or place whatsoever which the Carrier or Master may consider safe and advisable in the circumstances, whereupon the responsibility of the Carrier in respect of such goods shall cease. The Carrier shall nevertheless be entitled to full freight and charges on Goods received for transportation and the Merchant shall pay any additional costs of carriage to and delivery and storage at such port or place.

(2) The circumstance referred to in sub-clause (1) above shall include, but shall not be limited to those caused by the existence or apprehension of war declared or undeclared, hostilities, warlike or belligerent acts or operation, riots, civil commotions, or other disturbances, closure of, obstacles, in or danger to any canal blockade of port or place or interdict or prohibition of or restriction on commerce or trading, quarantine, sanitary, or other similar regulations or restriction, strikes lockouts or other labor troubles whether partial or general and whether or not involving employees of the Carrier or his sub-contractors, congestion of port, wharf, sea terminal or any other place shortage, absence or obstacles of labor or facilities for loading, discharge delivery or order handling of the Goods, epidemics, pandemic or diseases, bad weather, shallow water ice landslide or other obstacle in navigation or haulage.

**22. REFRIGERATED CARGO**
(1) The Merchant undertakes not to tender for transportation any Goods that require refrigeration without previously giving written notice of their nature and particular temperature range to be maintained and in case of a refrigerated Container packed by or on behalf of the Merchant further undertakes that the Goods have been properly stowed in the Container and that its thermostatic controls have been adequately set by him before receipt of the Goods by the Carrier.

If the above requirements are not complied with the Carrier shall not be liable for any loss of or damage to the Goods howsoever arising.

(2) The Carrier shall not be liable for any loss of or damage to the Goods arising from latent defects, inherent vice, derangement, breakdown, stoppage of the refrigerating machinery, plant, insulation and/or any apparatus of the Container, vessel, conveyance and any other facilities whatsoever provided that the Carrier shall before or at the beginning of the transport exercise due diligence to maintain the refrigerated Container in an efficient state.

**23. DANGEROUS GOODS**
(1) The Merchant undertakes not to tender for transportation any Goods which are of a dangerous, inflammable radioactive or damaging nature without previously giving written notice of their nature to the Carrier and marking the Goods and the Container or other covering on the outside as required by any laws or regulations which may be applicable during the carriage. The Carrier or the Master may however, in their absolute discretion reject any such Goods.

(2) If the requirements of sub-clause (1) are not complied with, the Goods may at any time or place be unloaded, destroyed, or rendered harmless without compensation and the Merchant shall indemnify the Carrier against all loss, damage or expense arising out of the Goods being tendered for transportation or handled or carried by the Carrier. Further the Carrier shall be under no liability to make any general average contribution at respect of such Goods.

(3) If the Goods of a dangerous, inflammable, radioactive or damaging nature, which were tendered in compliance with sub clause (1) shall become a danger to the vessel, cargo or any other property or person, such goods may in like manner be unloaded, destroyed or rendered harmless without compensation and the Merchant shall indemnify the Carrier against all loss, damage or expense which the Carrier could not avoid by the exercise or reasonable diligence but incurred as a result of the carriage of such goods.

**24. REGULATIONS RELATING TO GOODS**
The Merchant shall comply with all regulations or requirements of Customs, port and other authorities, and shall bear and pay all duties, taxes, fines, imposts, expenses or losses incurred or suffered by reason thereof or by reason of any illegal, incorrect or insufficient making, numbering or addressing of the Goods and indemnify the Carrier in respect thereof.

**25. NOTIFICATION AND DELIVERY**

(1) Any mention in this B/L of parties to be notified of the arrival of the Goods is solely for information of the Carrier, and failure to give such notification shall not involve the Carrier in any liability nor relieve the merchant of any obligation hereunder.

(2) The Merchant shall take delivery of the Goods within the time provided for in the Carriers applicable Tariff.

(3) If the Merchant fails to take delivery of Goods or part of them in accordance with this B/L, the Carrier may, without notice, un-stow the Goods or that part thereof and/or store the Goods or that part thereof ashore, afloat, in the open or under cover Such storage shall constitute due delivery hereunder, and thereupon all liability whatsoever of the Carrier in respect of the Goods or that part thereof shall cease.

(4) The Merchant's attention is drawn to the stipulation concerning free storage and demurrage contained in the Carrier's applicable Tariff, which is incorporated in this B/L.

(5) The Carrier may in his absolute discretion receive the Goods as full container load and deliver them as less than Full Container Load and/or as split delivery of the Goods to more than one receiver. In such event the Carrier shall not be liable for any shortage, loss damage or discrepancies of the Goods, which are found upon unpacking of the Container.

(6) The Carrier may in his absolute discretion receive the Goods as Less than Full Container Load and deliver them as Full Container Load. In such event the Carrier shall not be liable for any shortage, loss, damage or discrepancies of the Goods, which were not apparent at the time of such delivery provided that he shall have exercised ordinary care in packing the Containers If the Merchant fails to take delivery of the Goods or part of them in stipulations concerning free.

**26. BOTH-TO-BLAME COLLISION CLAUSE**
If the carrying ship comes into collision with another ship as a result of negligence of the other ship and any act, neglect or default in the navigation or the management of the carrying ship, the Merchant undertakes to pay the Carrier, or where the Carrier is not the owner and in possession of the carrying ship, to pay to the Carrier as trustee for the owner and/or demise charterer of the carrying ship, a sum sufficient to indemnify the Carrier and/or the owner and/or demise charterer of the carrying ship against all loss or liability to the other or non-carrying ship or her owners insofar as such loss or liability represents loss of or damage to or any claim whatsoever of the Merchant, paid or payable by the other or non-carrying ship or her owners to the Merchant and set off, recouped or recovered by the order or non-carrying ship or her owners as part of their claim against the carrying ship of her owner or demise charter or the Carrier. The foregoing provisions shall also apply where the owners, operators, or those in charge or any ship or ships or objects, other than, or in addition to the colliding ships or objects, are at fault in respect to a collision, contract, stranding or other accident

**27. GENERAL AVERAGE**
(1) General average shall be adjusted at any port or place in the option of the Carrier in accordance with the York Antwerp Rules, 1974 provided that where and adjustment is made in accordance with the law and practice of the United States of America or of any other country having the same similar law or practice the following clause shall apply.

(a) In the event of accident danger damage or disaster before or after the commencement of the voyage, resulting from any cause whatsoever, whether due to negligence of not for which, or for the consequence of which, the Carrier is not responsible by statue, contract or otherwise, the Goods and the Merchant shall contribute with the Carrier in general average to the payment of any sacrifices, losses or expenses of a general average nature that may be made or incurred and shall pay salvage and special charges incurred in respect of the Goods.

(b) If a salvage vessel is owned or operated by the Carrier, salvage shall be paid for as fully as if the said salvage vessel belonged to a third party. If the Carrier delivers the Goods without obtaining security for general average contributions, the Merchant, by taking delivery of the Goods, undertakes personal responsibility to pay such contributions and to provide such cash deposit or other security for the estimated amount of such contributions as the Carrier shall reasonably require;

(2) The Carrier shall be under no obligation to exercise any lien for general average contribution due to the Merchant.

**28. LAW AND JURISDICTION**
(1) Any claim or dispute arising under this B/L shall be governed by the law and determined by the courts of the country where the Carrier has its principal place of business;
(2) In the event anything herein contained is inconsistent with any applicable International convention or internal law of a state that cannot be departed from by private contract, the provisions hereof shall to extent of such inconsistency but no further be null and void.

**29. VARIATION OF THE CONTRACT ETC.**
No servant or agent of the Carrier shall have power to waive or vary any term of this B/L unless such waiver or variation is writing and is specifically authorized or ratified in writing by the Carrier.

**30. VESSELS ON CHARTER**
In case of Goods being carried by a vessel not belonging to the Carrier but chartered by him, then the Carrier shall be entitled to any and all rights, demurrers, prescriptions, exemptions from and limitations of liability available to the owners of the vessel as if the B/L has been issued by the Owner of the vessel or on his behalf

**ADDITIONAL CLAUSE**
A. INDONESIA
If customs regulations so prescribe, Goods not taken receipt of within the period fixed by such regulations will either be warehoused as uncared for goods or stored in the bond at the risk and expense of the receiver, such warehouse or storage to be considered as delivery of the Goods.